

24STCV28371 24STCV28371

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Case Number: 24STCV28371 Hearing Date: August 3, 2026 Dept: 508

Superior

Court of California

County

of Los Angeles

Department 508

LAURA M SERNA,

Plaintiff,

vs.

FCA US, LLC, et al.,

Defendants.

Case No.:

24STCV28371

Hearing Date:

August 3, 2026

Hearing Time:

10:00 a.m.

[TENTATIVE]

ORDER RE:

DEFENDANTS FCA US, LLC AND MONROVIA CHRYSLER DODGE JEEP RAM'S MOTION FOR
TERMINATING SANCTIONS AGAINST PLAINTIFF, OR IN THE ALTERNATIVE, EVIDENTIARY
SANCTIONS AND REQUEST FOR MONETARY SANCTIONS

Background

Plaintiff Laura

M. Serna ("Plaintiff") filed this lemon law action against Defendant FCA
US, LLC and Monrovia Chrysler Dodge Jeep Ram (jointly, "Defendants") on October
29, 2024, alleging six causes of action for (1) violation of subdivision (d) Civil Code section 1793.2, (2) violation of
subdivision (b) of Civil Code section 1793.2, (3)
violation of subdivision (a)(3) of Civil Code section
1793.2, (4) breach of the implied warranty of merchantability, (5) negligent
repair, and (6) fraudulent inducement - concealment.

Defendants now move for terminating sanctions or, alternatively, evidentiary
and monetary sanctions. Plaintiff opposes. Defendants did not reply.

Legal Standard

"Disobeying a court order to provide discovery," "[f]ailing to respond
or to submit to an authorized method of discovery," "[m]aking, without
substantial justification, an unmeritorious objection to discovery," and "[m]aking
an evasive response to discovery" are all misuses of the discovery process. (Code Civ. Proc., § 2023.010, subds. (d)-(g).) There is a broad range of sanctions available against anyone engaging in
conduct that is a misuse of the discovery process, including the issuance of
monetary, evidentiary, contempt, and terminating sanctions. (Code Civ. Proc., § 2023.030.) "The court may
impose a terminating sanction by one of the following orders: (1) An order
striking out the pleadings or parts of the pleadings of any party engaging in
the misuse of the discovery process. (2) An order staying further proceedings
by that party until an order for discovery is obeyed. (3) An order
dismissing the action, or any part of the action, of that party. (4) An
order rendering a judgment by default against that party." (Code Civ. Proc., § 2023.030, subd. (d).)

"The discovery statutes evince an incremental approach to discovery

sanctions, starting with monetary sanctions and ending with the ultimate sanction of termination.” (Doppes v. Bentley Motors, Inc. (2009) 174 Cal.App.4th 967, 992.) “Discovery sanctions ‘should be appropriate to the dereliction, and should not exceed that which is required to protect the interests of the party entitled to but denied discovery.’” (Ibid.) A terminating sanction is a “drastic measure which should be employed with caution.” (Deyo v. Kilbourne (1978) 84 Cal.App.3d 771, 793.) “A decision to order terminating sanctions should not be made lightly. But where a violation is willful, preceded by a history of abuse, and the evidence shows that less severe sanctions would not produce compliance with the discovery rules, the trial court is justified in imposing the ultimate sanction.” (Mileikowsky v. Tenet Healthsystem (2005) 128 Cal.App.4th 262, 279-280.)

Discussion

Defendants assert that they “have been attempting to obtain the Plaintiff’s deposition since December 12, 2024. In spite of exhaustive meet and confer efforts, three continued deposition dates and a court order for the Plaintiff to appear for her deposition on May 27, 2026, Plaintiff has yet to be deposed. Not only did Plaintiff fail to appear for her deposition as ordered, but served an objection to the court-ordered vehicle inspection that was to occur June 4, 2026.” (Mot., 4:3-7.)

A.

Background

A review of the history presented by Defendants’ counsel is as follows:

Defendants noticed Plaintiff for a deposition on December 12, 2024, Plaintiff objected because it was unilaterally set. (Borrero Decl., ¶¶ 2-3.) Thereafter, Defendants’ counsel emailed Plaintiff’s counsel twice in March 2025, but she did not respond. (Borrero Decl., ¶¶ 4-5.) In July 2025, Defendants’ counsel emailed again, and Plaintiff’s counsel responded to both emails, stating she was conferring with her client about a deposition. (Ibid.)

After not receiving an update, Defendants’ counsel filed a motion to compel Plaintiff’s deposition. (Borrero Decl., ¶ 5.) Before the hearing on the motion to compel Plaintiff’s deposition, Plaintiff’s counsel provided a deposition date of December 9, 2025. (Borrero Decl., ¶ 6.) “Plaintiff served an objection to the noticed deposition, but indicated that the Plaintiff will be produced for the deposition date, time and the location as set forth in the Notice.” (Borrero

Decl., ¶ 8, Ex. G.) Plaintiff, however, did not appear for the deposition, so Defendants moved forward with the motion to compel Plaintiff's deposition. (Borrero Decl., ¶ 9.)

A meet and confer with the Court in the form of an Informal Discovery Conference ("IDC") was set on April 9, 2026. (Borrero Decl., ¶ 10.) Defendants' counsel explains that "[i]n the interim, my office continued its efforts to reschedule the Plaintiff's deposition. On January 14, 2026, the parties agreed to a new deposition date of March 3, 2026. A second amended notice of deposition was served January 14, 2026." (Borrero Decl., ¶ 10.) However, "[o]n February 27, 2026, Plaintiff served yet another objection to a deposition that was scheduled based on dates that were provided by Plaintiff. Plaintiff's objection was based on 'scheduling conflicts.'" (Borrero Decl., ¶ 11.) "On March 2, 2026, Plaintiff's counsel offered three dates for Plaintiff's deposition. My office agreed to [sic] counsel agreed to May 27, 2026." (Borrero Decl., ¶ 12.) On March 4, 2026, Defendants' counsel served "a third continued notice for Plaintiff's deposition." (Borrero Decl., ¶ 13.)

At the April 9, 2026 IDC, "the parties agreed and the Court order[ed] as follows: 1. Plaintiff's deposition will take place on May 27, 2026. 2. The vehicle inspection will take place on June 4, 2026." (Borrero Decl., Ex. M.) However, Defendants' counsel explains that "[o]n May 26, 2026, at 6:31 p.m., Plaintiff's counsel sent an email to my office offering three new deposition dates for Plaintiff: May 29, 2026, June 1, 2026 and June 2, 2026. There was absolutely no mention of the previously agreed date of May 27, 2026, or that the court's ordered Plaintiff to appear on that date for her deposition. I sent an email on May 27, 2026, at 9:12 a.m. indicating that Plaintiff was ordered to appear on that day for her deposition and that I would be ready to proceed with the deposition that morning." (Borrero Decl., ¶ 15.) However, Defendants' counsel logged on at 9:50 a.m. and waited until 10:20 a.m., but neither Plaintiff nor her counsel appeared. (Borrero Decl., ¶ 16.)

Defendants' counsel explains that "in light of the continued failure of Plaintiff to appear for a deposition, my office responded on May 28, 2026, offering to depose plaintiff on May 29, 2026 in the afternoon or Monday, June 1, 2026, at 8:00 a.m. based on my availability and given the short notice by Plaintiff's counsel. On May 30, 2026, Plaintiff's counsel asked to hold June 1, 2026 at 11 am open but I was not available at the later time." (Borrero Decl., ¶ 17.) Then, "[o]n June 1, 2026, Plaintiff served an objection to the Noticed vehicle inspection scheduled for June 4, 2026, based, in part, on unilateral

notice and unavailability.” (Borrero Decl., ¶ 18.) Defendants’ counsel attests that “[a]s of the filing of this motion, Plaintiff has yet to be deposed and vehicle inspection has not been completed.” (Borrero Decl., ¶ 19.)

Plaintiff’s counsel provides her own declaration attesting to the events, beginning in March 2026. The only additional information Plaintiff’s counsel provides regarding the deposition is that her “office followed up with defense counsel regarding scheduling of the deposition and vehicle inspection on multiple occasions, including on June 2, 2026, June 30, 2026, July 14, 2026, and July 15, 2026. Defendants did not substantively respond to these communications; instead, Defendants filed the present Motion.” (Rucker Decl., ¶ 10.) As for the vehicle inspection, Plaintiff’s counsel explains that “Plaintiff objected to the June 4, 2026 vehicle inspection on procedural grounds, including that Defendants had not provided a vehicle inspection protocol, had not agreed in writing that no destructive testing would be performed and that no parts would be removed, and had not confirmed that diagnostic trouble codes would not be cleared. Those objections were intended to protect the subject vehicle, and Plaintiff remains willing to present the vehicle for a properly noticed inspection.” (Rucker Decl., ¶ 8.) Additionally, “Plaintiff has relocated to and now resides in Knoxville, Tennessee, which has complicated the logistics of the vehicle inspection. Rather than refuse the inspection, my office proposed conducting it at an authorized FCA dealership in Knoxville, Tennessee, and asked defense counsel to advise regarding arrangements.” (Rucker Decl., ¶ 9.)

Plaintiff’s counsel declares that “Plaintiff remains ready, willing, and able to be deposed and to present her vehicle for inspection. To demonstrate her continued good faith, Plaintiff offers the following deposition dates: July 28, July 29, and July 30, 2026, or any other date convenient to the Court and counsel. Plaintiff will require a Spanish-language interpreter, which my office will arrange.” (Rucker Decl., ¶ 13.)

B.

Terminating Sanctions

As a preliminary matter, the Court notes that terminating sanctions are a drastic remedy, often imposed in instances where “the record is replete with instances of delay and failure to comply with a court order.” (Laguna Auto Body v. Farmers Ins. Exchange (1991) 231 Cal.App.3d 481, 489 [disapproved on other grounds].) “[T]he sanctioned party’s history as a repeat offender is not only relevant, but also significant, in deciding whether to impose

terminating sanctions.” (Liberty Mutual Fire Ins.

Co. v. LcL Administrators, Inc.

(2008) 163 Cal.App.4th 1093, 1106.) “A decision to order terminating sanctions

should not be made lightly. But where a violation is willful, preceded by a

history of abuse, and the evidence shows that less severe sanctions would not

produce compliance with the discovery rules, the trial court is justified in

imposing the ultimate sanction.” (Mileikowsky v. Tenet Healthsystem (2005) 128 Cal.App.4th 262, 279-280.)

Defendants assert that “[a]s noted in the accompanying declaration,

Defendants have been attempting to obtain Plaintiff’s deposition since December

2024; almost a year and a half ago. Plaintiff’s failure to comply with the

court’s valid discovery order warrants terminating sanctions. Defendants

respectfully request that the court strike out the entirety of Plaintiff’s

Complaint due to her misuse of the discovery process, pursuant to the CCP § 2023.030(d)(1), and to dismiss the action with prejudice pursuant to section 2023.030(d)(3).”

(Mot., 8:15-20.) Further, Defendants contend that “Plaintiff has refused to

comply with or participate in the discovery process as statutorily required and

pursuant to specific court orders. The blatant and egregious refusal and

failure by Plaintiff to attend her deposition and vehicle inspection is without

substantial justification and constitutes an abuse of discovery.” (Mot.,

9:3-6.)

Plaintiff’s opposition asserts “[t]hat the parties could not align on a

single date before the Court’s deadline does not establish willful

disobedience. Plaintiff offered alternative dates the evening before the

scheduled session, promptly proposed further dates, and has followed up repeatedly

since. These actions are inconsistent with an outright refusal to participate

in discovery and instead demonstrate Plaintiff’s present willingness to comply

fully with her discovery obligations. Moreover, FCA cannot demonstrate any

meaningful prejudice. The Final Status Conference and jury trial have both been

vacated, and the Court is scheduled to reset trial dates.” (Opp., 5:13-19.)

As discussed below, the Court has yet to impose any sanctions on

Plaintiff. Accordingly, the Court finds that granting terminating sanctions

would be too drastic given the circumstances. Thus, the relevant inquiry is

whether monetary or evidentiary sanctions should be imposed.

C.

Sanctions for the Instant Motion

"If the Court deems terminating sanctions too drastic a remedy," in lieu of terminating sanctions, Defendants request evidentiary sanctions "to specifically preclude Plaintiff from testifying in this case" and monetary sanctions in the amount of \$3,147.50. (Mot., 9:22-23.)

Defendants assert that "Plaintiff has been given every opportunity to appear for her deposition, yet she has failed to do so, even despite a Court order. Such conduct violates not only the statutes governing depositions but constitutes a misuse of the discovery process." (Mot., 10:19-21.) Further, Defendants contend that "[i]n view of the prejudice suffered by moving Defendants because of Plaintiff's continued failure to respond to discovery, and in view of Plaintiff's disregard for the Court's order, Defendants request that the Court impose evidentiary sanctions prohibiting the Plaintiff from testifying in this case." (Mot., 11:1-4.)

Plaintiff's opposition explains that "FCA's alternative request for evidentiary sanctions precluding Plaintiff from testifying at trial is likewise disproportionate. Evidentiary sanctions serve to remedy prejudice caused by a party's failure to produce evidence—not to punish a party who has yet to be deposed but has repeatedly offered dates. No evidence has been lost, no trial preparation has been irreparably impaired, and no meaningful prejudice can be shown when Plaintiff is available to be deposed before any pretrial deadline. Defendants will receive Plaintiff's testimony before trial, eliminating any basis for evidentiary sanctions." (Opp., 6:2-8.)

Pursuant to the history provided by the parties, the Court finds that Defendants have run into significant difficulty scheduling with Plaintiff. Plaintiff agreed to and was bound by the April 9, 2026 Order to be deposed on May 27, 2026, and to produce the vehicle for inspection on June 4, 2026. Plaintiff never requested a modification of that Order. the Court finds that evidentiary sanctions are not warranted at this time. The Court finds monetary sanctions are warranted at this time. However, the Court does find that monetary sanctions are warranted for Plaintiff and her counsel's violation of the April 9, 2026 that Plaintiff was to be deposed on May 27, 2026 and the vehicle inspection was to be done on June 4, 2026..

For monetary sanctions, Defendants assert that they "have incurred additional expenses, including attorneys' fees in having to file this motion to obtain necessary relief as Plaintiff and her

counsel have frustrated Defendants' efforts to obtain her deposition by objecting to four properly noticed depositions, three of which were dates offered by Plaintiff and her counsel. Plaintiff and her counsel have prevented Defendants from pushing this case forward by Plaintiff's refusal to appear for a deposition. The Court should impose sanctions upon Plaintiff and her counsel for such conduct and forcing Defendants to bring this motion and incur unnecessary expenses." (Mot., 11:15-21.)

Defendants' counsel's declaration in support explains that she "spent approximately 6.5 hours preparing this motion. I anticipate spending approximately 2 additional hours reviewing and responding to Plaintiff's Opposition and one hour attending the hearing on this motion. The hourly rate on this matter is \$325.00 and is commensurate with that charged in Los Angeles County for attorneys of the same experience, such as the undersigned. In addition, Defendant has incurred \$60.00 in fees for the filing of this motion... The Court should award sanctions against Plaintiffs, in the amount of \$3,147.50, ... against Plaintiff and Plaintiff's counsel." (Borrero Decl., ¶¶ 21-22.) The Court finds the requested amount reasonable and modest under the circumstances.

Conclusion

Based on the foregoing, Defendants' motion for sanctions is GRANTED IN PART. The Court imposes monetary sanctions on Plaintiff and her counsel in the amount of \$3,147.50, payable within thirty days of this Order. The Court orders Plaintiff to sit for her deposition and produce her vehicle for inspection within thirty days of this Order.

Defendants are ordered to give notice of this Order.

DATED: August 3, 2026

Hon. Teresa A.
Beaudet

Judge, Los

